

25STCV38754 25STCV38754

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Case Number: 25STCV38754 Hearing Date: August 4, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

PING TSAI,

Plaintiff,

v.

MERCK & CO.,
INC., et al.,

Defendants.¿

¿¿¿ Case No. 25STCV38754

¿¿¿¿¿

¿¿¿ Hearing Date: August
4, 2026

¿¿¿

Time:¿¿¿¿¿¿¿¿¿¿¿¿¿¿¿¿ 9:00 a.m.¿

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¿¿¿[Tentative] ORDER RE:¿

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¿¿¿ MOTIONS

TO QUASH SERVICE OF SUMMONS FOR LACK OF PERSONAL JURISDICTION FILED BY
SPECIALLY APPEARING DEFENDANTS MINERALS TECHNOLOGIES, INC. AND SPECIALTY
MINERALS, INC.

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I.

Background

On December 31, 2025, Plaintiff Ping Tsai
filed her complaint for personal injury alleging she developed mesothelioma
from direct exposure to asbestos contaminated talc products in California throughout
her life. As against specially appearing Defendants Minerals Technologies, Inc.
("MTI") and Specialty Minerals, Inc. ("SMI") (collectively, "Defendants"), Plaintiff
alleges that Defendants "were responsible for asbestos-analysis of raw and
processed talc that was eventually supplied and used in the manufacture of
talcum powder products exposing Plaintiff Ping Tsai to asbestos and asbestiform
talc." (Compl. at p.5.)

On June 3, 2026, Defendants moved to quash service of summons, arguing that they did not perform any activities in California such that it could be subject to jurisdiction in California. Defendants argue that Plaintiff is required to present evidence to show how they purposefully availed itself of California and that Plaintiff's causes of action arise from or relate to Defendants' California contacts.

On July 22, 2026, Plaintiff opposed, arguing she presents sufficient evidence that Defendants purposefully availed themselves of the California market. Specifically, Plaintiff argues that they have evidence that MTI and SMI tested and expressly marketed talc from a mine operated by a subsidiary in Montana that would comply with California's Proposition 65 cancer warning law.

On July 28, 2026, Defendants replied, arguing that the stream of commerce theory does not apply because they did not manufacture products and did not place products in the stream of commerce. Defendants also argue that the stream of commerce theory is limited to products liability claims. Defendants also argue that the Material Safety Data Sheets ("MSDSs") Plaintiff relies on are not marketable products placed in the stream of commerce.

Plaintiff failed to present sufficient evidence to show that Defendants purposefully availed themselves of the California market. However, the court exercises its discretion to allow Plaintiff to conduct jurisdictional discovery. Therefore, Defendants' motions are continued to Thursday, September 24, 2026.

II.

Evidentiary Objections

Defendants'
objections

Defendants
object to Plaintiff's Exhibit 2, a promotional brochure about Barretts Minerals, Inc., on the grounds that it is unauthenticated hearsay. The objection is sustained because the brochure is unauthenticated. There is no evidence that document is what Plaintiff purports it to be.

III.

Discussion

A.

Legal Standards

A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).)¿

"A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)¿

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553.) Once facts showing minimum contacts with the forum state are established, the defendant has the burden to demonstrate the exercise of jurisdiction would be unreasonable. (Ibid.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]" (Strasner v. Touchstone Wireless Repair & Logistics, LP (2016) 5 Cal.App.5th 215, 222.)¿

A defendant is subject to

a state's general jurisdiction if its contacts "are so continuous and systematic as to render [it] essentially at home in the forum State." (Daimler AG v. Bauman (2014) 571 U.S. 117, 127.) A nonresident defendant may be subject to the specific jurisdiction of the forum "if the defendant has purposefully availed himself or herself of forum benefits [citation], and the 'controversy is related to or "arises out of" a defendant's contacts with the forum.' [Citations.]" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 446.) This test does not require a "causal relationship between the defendant's in-state activity and the litigation." (Ford Motor Co. v. Montana Eighth Judicial District Court (2021) 592 U.S. 351, 362) The "arise out" of standard "asks about causation," but "relate to" does not. (Ibid.) "[W]hen a corporation has 'continuously and deliberately exploited [a State's] market, it must reasonably anticipate being haled into [that State's] court[s]' to defend actions 'based on' products causing injury there." (Id. at p. 364.)

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B.

General Jurisdiction

General jurisdiction is not at issue here. General jurisdiction over a corporate defendant exists when the corporation's "affiliations with the State are so 'continuous and systematic' as to render it essentially at home in the forum State." (Daimler, supra, 571 U.S. at p. 139.) The paradigmatic examples of these affiliations are the locations where the defendant is incorporated and of the defendant's principal place of business. (Daimler, supra, 571 U.S. 117, at p. 137.)

Here, the undisputed evidence establishes that Defendants are incorporated in Delaware and headquartered in New York. (Sudnik Decl. ¶¶2-3.) Barretts Minerals, Inc. is a subsidiary of SMI that mined and supplied talc to customers who manufactured talcum powder products. (Id. at ¶9.) As will be discussed below, Plaintiff alleges that Defendants negligently tested products talc mined by BMI for asbestos. Plaintiff does not argue that Defendants are subject to general jurisdiction in California. (Opposition at p.6.) Therefore, general jurisdiction is not at issue here. The motion turns on whether Plaintiff presented sufficient evidence to show that Defendants are subject to specific jurisdiction in California.

C.

Specific Jurisdiction

A court may exercise specific jurisdiction over a plaintiff when three elements are satisfied: “(1) ‘the defendant has purposefully availed himself or herself of forum benefits’ [citation]; (2) ‘the controversy is related to or “arises out of” [the] defendant’s contacts with the forum’ [citation]; and (3) “ ‘the assertion of personal jurisdiction would comport with ‘fair play and substantial justice’ ” [citation.]” (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269.)

1. Purposeful

Availment

Purposeful availment “focuses on the defendant’s intentionality. This prong is satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on his contacts with the forum.” (Pavlovich, supra, 29 Cal.4th at p. 269.) “California courts have consistently concluded that a foreign corporation purposefully avails itself of the benefits of the California forum when it knowingly sells and ships its products to California businesses for use in California.” (LG Chem, Ltd. v. Superior Court of San Diego County (2022) 80 Cal.App.5th 348, 363.)

Plaintiff

argues that she presents sufficient evidence to show that Defendants are subject to specific jurisdiction in California. Relying on documents produced in an unrelated matter, Maricich v. Chattem, Inc., et al., ACSC Case No. 25CV116787 (“Maricich”), Plaintiff argues that talcum product manufacturers Chattem and Vi-Jon received Technical Data Sheets (“TDSs”) and MSDSs from MTI, SMI, and one of their subsidiaries, Barretts Minerals Inc. (“BMI”). (Opp. at p.8.) Plaintiffs argue that the MSDSs referred to California’s Proposition 65 cancer prevention law while stating that the talc is asbestos free. (Id. at pp.8-9.) Plaintiffs argue that because Defendants provided these data sheets and communicated with BMI’s customers regarding the talc’s compliance with Prop 65 requirements, Defendants purposefully marketed the BMI talc for sale in California and purposefully availed itself of the California

market. (Opp. at pp.11-12 [“MTI and SMI submit declarations by Mr. Tomaino, Mr. Sudnik, Mr. Lindsey, and Mr. Ledbetter. But those declarations only further show that MTI and SMI did test and expressly market Barretts’ talc for use in cosmetic talc products that would comply with California’s

Proposition

65 cancer warning law. Most significantly, Mr. Ledbetter authenticates (but does not provide copies of) the MSDS’s that Plaintiffs rely upon – each showing that MTI and SMI had tested and reported that the talc was asbestos-free within the meaning of Proposition 65. The fact that MTI and SMI also marketed the same talc as an ingredient that likewise would satisfy additional states’ cancer warning laws does not negate MTI’s and SMI’s purposeful availment of the California market.”].)

In

reply, Defendants argue that the stream of commerce theory Plaintiff proposes does not apply here. (Reply at p.2 [“MTI did not manufacture products, and it did not place any product in the stream of commerce. Second, the stream-of-commerce theory of jurisdiction is limited to products liability claims where a manufacturer targets a market. Plaintiff has not asserted products liability claims against MTI. Nor do material safety data sheets (“MSDSs”) or technical sheets establish that MTI purposefully targeted the California market for BMI talc. Lastly, MSDSs and technical data sheets are not marketable products that are placed into the stream of commerce. They therefore cannot support liability under the stream-of-commerce theory.”].) Defendants also argue that Plaintiff fails to address their evidence that Defendants never tested BMI’s talc. (Reply at p.7.)

i.

Whether Defendants purposefully availed itself of the California market by performing testing and including representations about compliance with California’s Prop 65 in its Materials Safety Data Sheets

Plaintiff

argues that Defendants purposefully availed themselves of the California market when they performed testing on BMI’s talc to comply with California’s Prop 65 cancer prevention law and included information about BMI’s talc’s compliance with Prop 65 on its MSDSs. Plaintiff relies on her deposition testimony, a promotional brochure, TDSs, MSDSs, excerpts from the deposition of Gary Tomaino taken in *Maute v. Barretts Minerals, Inc., et al.*, Broward County, Florida Case No. CACE-22-008500, EPA regulations, copies of asbestos testing

method records, and the deposition of Matthew Lochstampfor taken in Arvelo v. Asbestos Corp., Ltd., et al., N.J. Super Ct. Case No. MID-L-00588-17AS to support her opposition.

As

discussed, mere knowledge of the likelihood that a product will enter a state is insufficient, without more, to establish personal jurisdiction over that Defendant. (Jayone, supra, 31 Cal.App.5th 543, 55.) Although neither party cites binding authority, the persuasive authority from federal district courts in California indicates that complying with California regulations, including proposition 65 warnings, does not itself constitute purposeful availment under California law. (See Rojas v. Hamm, (N.D. Cal., Aug. 12, 2019, No. 18-CV-01779-WHO) 2019 WL 3779706 at * 5 [“Compliance with Proposition 65 alone is not enough to establish personal jurisdiction in California. [Citations] The mere inclusion of the warning at the request of a purchaser is not a purposeful act directed at California.”] See also Miller v. Peter Thomas Roth, LLC (N.D. Cal., Apr. 5, 2019, No. C 19-00698 WHA) 2019 WL 1507767 at * 3 [“As states enforce health and safety statutes and enter into preemptive settlement agreements with defendants who agree to comply and pay a fine, it is unreasonable to assume that each foreign defendant who signs a settlement agreement would open itself to personal jurisdiction akin to general jurisdiction simply by choosing to comply with state statutes.”].) Accordingly, the mere fact that a defendant complies with California regulations, including proposition 65, does not establish purposeful availment.

Here, Plaintiff

directs the court’s attention to a promotional brochure produced in the Maricich case to show that MTI is the parent of SMI, and that SMI is the parent of BMI. (Opp. at p.8.) Plaintiff also uses this document to show that BMI sold talc and that MTI and SMI promoted BMI’s quality certification. (Id.) However, the court sustained Defendants’ objection to this exhibit.

Plaintiff

also provides the TDSs and MSDSs talcum powder manufacturers Chattem and Vi-Jon produced in the Maricich case. (Stewart Decl., Exhs. 3-5.) As Defendants point out in the reply, the TDSs do not contain any language about California or Prop 65. (Id., Exhs. 3-4.) The MSDSs state the following:

"The following statement(s) are provided under the California Safe Drinking Water and Toxic Enforcement Act of 1986 (Proposition 65):

WARNING! This product contains a chemical known to the state of California to cause cancer."

(Stewart Decl., Exhs. 5 at VIJONMARICICH0000959, VIJONMARICICH0005390, VIJONMARICICH0006839, VIJONMARICICH0016881, VIJONMARICICH0016908, VIJONMARICICH0017015, VIJONMARICICH0017045, VIJONMARICICH0017092, VIJONMARICICH0017126, VIJONMARICICH0017618, VIJONMARICICH0017634, VIJONMARICICH0019856, VIJONMARICICH0038242, VIJONMARICICH000965, VIJONMARICICH0005101, VIJONMARICICH005396, VIJONMARICICH006871, VIJONMARICICH0016887, VIJONMARICICH0016914, VIJONMARICICH00 VIJONMARICICH0017021, VIJONMARICICH0017051, VIJONMARICICH0017098, VIJONMARICICH0017105, VIJONMARICICH0017132, VIJONMARICICH0017624, VIJONMARICICH0017640, VIJONMARICICH0019868, VIJONMARICICH0038248, VIJONMARICICH0039061, VIJONMARICICH0001797, VIJONMARICICH0006583, VIJONMARICICH0016920, VIJONMARICICH001728, VIJONMARICICH0000889, VIJONMARICICH0001214, VIJONMARICICH0001255, VIJONMARICICH0002212, VIJONMARICICH0006851, VIJONMARICICH0006891, VIJONMARICICH0017076, VIJONMARICICH0019862, VIJONMARICICH0038254, VIJONMARICICH0039041, VIJONMARICICH0039076, VIJONMARICICH0000986, VIJONMARICICH0002168, VIJONMARICICH0017066.) This warning appears in other MSDSs as follows:

"15.3

US State regulations: California Proposition 65 – This product contains, or may contain, trace quantities of a substance(s) known to the state of California to cause cancer and/or reproductive toxicity."

(Stewart Decl., Exhs. 5 at VIJONMARICICH001866, VIJONMARICICH0005071, VIJONMARICICH0006858, VIJONMARICICH0006885, VIJONMARICICH0017608, VIJONMARICICH0017653, VIJONMARICICH0019753, VIJONMARICICH0019760, VIJONMARICICH0020303, VIJONMARICICH0038261, VIJONMARICICH0000061, VIJONMARICICH000148, VIJONMARICICH0001268, VIJONMARICICH001286, VIJONMARICICH0001998, VIJONMARICICH0005313, VIJONMARICICH0006865, VIJONMARICICH0006878, VIJONMARICICH0016706, VIJONMARICICH0016718, VIJONMARICICH0016997, VIJONMARICICH0019767, VIJONMARICICH0019774, VIJONMARICICH0019850, VIJONMARICICH0038268.) The MSDSs containing this

variation of the warning then state Prop 65 warnings for quartz.

Plaintiff

also presents the deposition testimony of Gary Tomaino taken in the Maute matter to show that Mr. Tomaino worked for SMI in its Analytical Services Group (“ASG”), which provided analytical service testing for BMI. (Stewart Decl., Exh. 6 at 10:12-11:25.) Plaintiff also cites Mr. Tomaino’s testimony to show that ASG performed all of the testing on BMI’s talc and that MTI set ASG’s testing policies. (Id. at 134:6-135:6, 445:24-446:5, 139:12-24, 140:7-23.)

The

remainder of Plaintiffs’ evidence, documents pertaining to EPA regulations and copies of documents describing testing methodologies, are used to show that MTI and SMI used inadequate testing methods and failed to inform their customers. (Opposition at pp.10-11.) This evidence goes to the merits of Plaintiffs’ claims against MTI and SMI, not whether Defendants purposefully availed themselves of the California Market.

Plaintiff fails

to present sufficient evidence to show that Defendants’ participation in testing of the talc used in the manufacture of talcum powder products constituted purposeful availment of the California market. Plaintiff was required to show “a ‘regular ... flow’ or ‘regular course’ of sales in the forum state, and/or some additional efforts directed toward the forum state, such as ‘special state-related design, advertising, advice, [or] marketing.’” (L.W. v. Audi AG (2025) 108 Cal.App.5th 95 reh’g denied (Feb. 6, 2025), review denied (Apr. 23, 2025), cert. denied (U.S., Jan. 20, 2026, No. 25-349) [citing J. McIntyre Machinery, Ltd. v. Nicastro (2011) 564 U.S. 873, (conc. opn. of Breyer, J.).])

Here,

the evidence shows at most that ASG, a department of SMI, performed testing on BMI talc and that Defendants placed warnings on MSDSs in compliance with Prop 65. Compliance with California regulations alone is insufficient to show that Defendants purposefully availed themselves of the California market. Plaintiffs provided no evidence that Defendants performed this testing or placed these warnings on its MSDSs to purposefully advertise, market, or design its products for the California market. There is thus no evidence that Defendants engaged in additional efforts directed to California.

Accordingly, even though Defendants placed warnings on its MSDSs to comply with California regulations, Plaintiff failed to present evidence that Defendants' actions "reflected an effort to benefit from the California market and constituted economic activity within California ' " 'as a matter of commercial actuality.' " "[Citation.]' " (Bridgestone Corp. v. Superior Court (2002) 99 Cal.App.4th 767, 776 - 777.) Therefore, Plaintiff failed to present sufficient evidence to satisfy her burden that Defendants purposefully availed themselves of the California market by placing a warning in compliance with Prop 65 on its MSDSs about BMI talc.

B. Jurisdictional Discovery

A plaintiff attempting to assert jurisdiction over a nonresident defendant is entitled to an opportunity to conduct discovery of the jurisdictional facts necessary to sustain its burden of proof[.]" (Hardell v. Vanzyl (2024) 102 Cal.App.5th 960, 975-976; Goehring v. Superior Court (Bernier) (1998) 62 Cal.App.4th 894.) The court has "discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues." (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1173.) However, "In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction." (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.)

Plaintiff alternatively requests that the court continue this matter to allow her to conduct jurisdictional discovery:

"Alternatively, Plaintiff requests jurisdictional discovery against MTI and SMI, so that Plaintiff can further prove that MTI and SMI purposefully targeted the California market for Barretts' talc. [Mihlon v. Super. Ct. (Murkey) (1985) 169 Cal.App.3d 703, 710 (relevant jurisdictional discovery should be permitted).] As against MTI and SMI, Plaintiff requests special interrogatories, requests for production, and depositions (including depositions of Mr. Tomaino, Mr.

Sudnik, Mr. Lindsey, and Mr. Ledbetter, as well as the corporate-representative witnesses of MTI and SMI) on topics including, for example:

1. All Material Safety Data Sheets

for Microtalc that were provided to Chattem during the 2000's and 2010's;

2. All Technical Data Sheets for

Microtalc that were provided to Chattem during the 2000's and 2010's;

3. All promotional brochures that

were provided to Chattem during the 2000's and 2010's;

4. All documents that reference

California's Proposition 65 cancer warning law and Microtalc during the 2000's and 2010's."

(Opp. at p.14.)

In reply, Defendants argue that discovery

"will not change the facts that MTI did not test BMI talc and that all such testing took place in Pennsylvania, not California." (Reply at p.10.)

The

court exercises its discretion to allow Plaintiff to conduct jurisdictional discovery because some of the proposed discovery, such as whether Defendants marketed BMI's talc using ASG's asbestos test results to customers for the specific purpose of making products compliant with Prop 65, could lead to evidence establishing specific jurisdiction over Defendants. Accordingly, the request for jurisdictional discovery is granted.

IV.

Conclusion

Plaintiff failed to present

sufficient evidence to show that Defendants purposefully availed themselves of the California market. However, the court exercises its discretion to allow Plaintiff to conduct jurisdictional discovery. Therefore, the hearing on Defendants' motions is continued to Thursday, September 24, 2026 at 9 a.m. Plaintiff's supplemental opposition shall be served and filed on or before September 9, 2026; Defendants' supplemental reply shall be served and filed on or before September 17, 2026.

Plaintiff

to give notice.